

Contract No. _____

**LEASE AGREEMENT BETWEEN THE CITY OF CHEYENNE, WYOMING
AND UNION TELEPHONE COMPANY**

1. **Parties.** This Lease is made and entered into this 1st day of January, 2025, by and between the City of Cheyenne ("City"), a municipal corporation organized and existing under the laws of Wyoming, whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, hereinafter referred to as the "Lessor," and Union Telephone Company, a Wyoming corporation, whose address is P.O. Box 160, Mountain View, Wyoming 82939, hereinafter referred to as "Lessee."

2. **Purpose.** The Purpose of this Lease is to allow Lessee to utilize the Parks Division Maintenance Shop, located at 4500 Dell Range Boulevard, Cheyenne, Wyoming, as more particularly described in Attachment A, for the purpose of maintaining a roof mount communications system, as described in Attachment B (the "Premises"), to be used by Lessee to conduct telecommunications operations. Attachments A and B are attached hereto, incorporated by reference and expressly made a part of this Lease.

3. **Term.** The term of the Lease shall run from January 1, 2025, through December 31, 2029. This Lease may be renewed for up to four (4) successive five (5) year terms, contingent upon Lessee's agreement to increase the annual rent by fifteen percent (15%) for the renewal period. Lessee shall furnish to Lessor, no later than sixty (60) days prior to the expiration of the lease term, written notice of its intent to renew or terminate the Lease.

4. **Payment of Rent.** Lessor and Lessee acknowledge and agree that a rental payment in the amount of Seventeen Thousand Eight Hundred Sixty Dollars and Fifty Cents (\$17,860.50) was made and received on or about January 17, 2025. Upon acceptance and full execution of this Lease Agreement, Lessee shall make a one-time payment to Lessor in the amount of One Thousand One Hundred Thirty-Nine Dollars and Fifty Cents (\$1,139.50) as the balance of Rent due for 2025. On or before January 1, 2026, and in advance of the anniversary date of this Lease each year thereafter, Lessee shall pay to Lessor the sum of Nineteen Thousand Dollars (\$19,000.00) as annual Rent for this Lease, increased each term in accordance with Paragraph 3 above.

5. **Responsibilities of the Lessor.** Lessor agrees that it will allow the Lessee use of the Premises for the limited purposes set forth in this lease.

6. **Responsibilities of the Lessee.** Lessee agrees that it shall:

a. Use the Premises only for the express purpose of maintaining and operating a roof mount communications system in strict compliance with the terms set forth in this lease. All other uses are expressly prohibited.

b. Operate and maintain the roof mount communications system on the Premises in a condition satisfactory to Lessor.

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- c. Maintain the Premises in a condition satisfactory to Lessor.
- d. Be responsible for any and all utility construction and service charges in relation to said roof mount communications system.
- e. Erect no structures, fences, buildings, or structures of any type without the prior express written consent of Lessor.
- f. Observe all federal, state, and local laws, regulations, rules and ordinances in exercising any rights under this lease, including but not limited to compliance with all federal permitting requirements.
- g. Permit no pollution of the air, water or earth in exercising any rights under this Lease.
- h. Permit no waste of the Premises.
- i. Not encumber the Premises, or allow the Premises to be encumbered, in any manner due to Lessee's activities.
- j. Not interfere with the radio signals of Lessor in any manner.
- k. Upon completion of construction and upon the termination of this Lease or any renewal thereof, restore the demised Premises in a manner which is satisfactory to Lessor.

7. Co-Location Provisions.

a. Third-Party Co-Location Not Permitted without Lessors Express Written Consent. Lessee expressly agrees and understands that it may not co-locate, sublease, assign or otherwise permit installation, attachment or placement of any equipment not expressly approved in this Lease on the roof mount communications system without Lessor's express written consent; provided however, that Lessee may co-locate equipment owned or operated solely by its subsidiaries without Lessor's express written consent.

b. No Conflict with Lessor Operations. Lessee expressly agrees that it, and its sub-lessees, shall conduct their operations in a manner to avoid any conflict with current and future Lessor operations. In the event of any conflict, Lessee, and its sub-lessees, expressly agree to modify their operations and procedures upon demand of the Lessor to accommodate Lessor's reasonable needs. In the event Lessee is required to modify its operations or procedures from those in effect at the date of execution of this Lease as a result of changes in Lessor's operations, relocation of communications system equipment shall be at the expense of Lessor.

8. Special Provisions.

a. Insurance Required. Lessee must provide proof of the following insurance coverages:

i. **COMMERCIAL GENERAL LIABILITY INSURANCE.** For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Lease. Such insurance shall include, but not be limited to coverage for any damage to Lessor's property, operations, tower, equipment, supplies or materials, and any damages sustained by any third persons as a result of Lessee's operations, tower and related equipment. Lessee shall maintain such insurance coverage in effect during the initial term of this lease, and any renewal thereof.

ii. **BUSINESS AUTOMOBILE INSURANCE.** Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Lease.

iii. **WORKERS' COMPENSATION.** Workers' Compensation coverage shall be in effect for the entire term of the Lease, as required by Wyoming law, for all employees or agents providing services under this Lease. Lessee shall provide Lessor with proof of workers' compensation or employer's liability insurance coverage.

iv. **CRIME INSURANCE.** In an amount not less than \$500,000 per occurrence.

v. **ADDITIONAL INSURANCE INFORMATION.** If insurance coverage required under this agreement is provided pursuant to a "claims made" policy, Lessee shall, concurrently with the execution of this Lease, provide the Lessor with a certificate of insurance demonstrating that such coverage is or shall be in effect on or before the effective date of this Lease. Lessee shall maintain said "claims made" coverage for a period of five (5) years following the last date that Lessee has operated under this Lease. In the event Lessee or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in this paragraph, Lessee shall provide to Lessor advance written notification of the termination of said coverage and shall provide Lessor with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Lessee operated under this Lease.

In the event this Lease is extended into a future period, the Lessee shall,

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prior to the policy expiration date, provide the Lessor with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that this Lease is in effect.

Lessee shall name the City of Cheyenne as an Additional Insured by endorsement on its insurance policies, with the exception of worker's compensation, and shall provide Lessor with a copy of the endorsements.

Lessee shall provide Lessor with certificates of insurance acknowledging the above- stated coverages prior to the effective date of this Lease.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Lease shall be in effect for the duration of the Lease. It shall be an affirmative obligation upon Lessee to immediately notify Lessor in writing of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Lease, and failure to do so shall be construed to be a breach of this Lease.

In addition, Lessee shall provide Lessor with copies of insurance policies and/or policy endorsements listing the Parks & Recreation Department and the City of Cheyenne as an additional insured. Lessor's failure to request or review such policies, endorsements, or certificates shall not affect Lessor's rights or Lessee's obligation hereunder.

Any insurance company providing coverage under this Lease shall have a minimum A. M. Best rating of A- (excellent).

b. Facility Ownership. It is expressly agreed and understood that legal and equitable title to any improvements placed upon the property by Lessee under this lease, including but not limited to the roof mount communications system and any and all other related equipment, material, goods or supplies, shall at all times be in the name of Lessee.

c. Facility Management. It is expressly agreed and understood that Lessee's facility, including but not limited to the roof mount communications system, and any and all other related equipment, material, goods or supplies, shall at all times be managed by Lessee and that this duty shall not be delegated, without Lessor's written consent.

9. General Provisions.

a. Americans with Disabilities Act. Lessee shall not discriminate against a qualified individual with a disability and shall comply with the Americans with Disabilities Act, P.L. 101-336, 42 U.S.C. § 12101, et seq., and any properly promulgated rules and regulations related thereto.

b. Amendments. No changes, modifications, revisions or amendments to this Lease may be made or shall be valid in the absence of the execution of written agreement by the parties hereto. No oral amendment or modification of this Lease shall be valid or have any force or effect.

c. Applicable Law/Venue. The construction, interpretation and enforcement of this Lease shall be governed by the laws of the State of Wyoming. The courts of the First Judicial District, Laramie County, Wyoming shall have exclusive jurisdiction over any disputes arising under this Lease and any actions relating to the interpretation or enforcement of this Lease shall be brought only in the First Judicial District.

d. Assignment. This Lease may not be assigned to any other party without the express written consent of Lessor. Any unauthorized effort to assign this lease shall result in its immediate termination.

e. Assignment Upon Default to Lender. With Lessor's express written consent, this Lease may be pledged as collateral in connection with any financing obtained by Lessee to fund capital improvements or operations. Lessor reserves the right to refuse to approve the assignment of this Lease in the event the proposed assignee refuses to assume the Lessee's duties to indemnify the City of Cheyenne and Lessor as provided for such in this Lease.

f. Compliance with Law. Lessee, its agents, employees and officers shall become informed of and comply with all applicable federal, state and local laws, rules and regulations in the performance of this Lease.

g. Governmental Immunity. By entering into this Lease, the City of Cheyenne and the Lessor do not waive governmental immunity, and each specifically retains all immunities and all defenses available to them as governmental entities pursuant to Wyo. Stat. § 1-39-101 et seq. and pursuant to any other state or federal law which provides immunity to the City of Cheyenne or the Lessor.

h. Titles Not Controlling. Titles of paragraphs are for reference only and shall not be used to construe the language in this Lease.

i. Waiver. The waiver of any breach of any term or condition in this Lease shall not be deemed a waiver of any prior or subsequent breach.

j. Indemnity. Lessee agrees to indemnify, hold harmless and defend Lessor from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) Lessee's breach of any term or provision of this Lease; or (2) any negligent or wrongful act, error or omission by Lessee, or its agents, employees, sub-lessees, or subcontractors arising in any manner out

of Lessee's use of the leased property or this Lease. Lessee acknowledges that it may incur a financial obligation to Lessor pursuant to the terms of this paragraph.

k. Termination. Lessor may terminate this Lease for: (i) breach of its terms and conditions; (ii) for abandonment of Lessee's obligations under this Lease; and, (iii) for such other reasons as necessary to serve the public interest, by providing Lessee with thirty (30) days advance written notification.

i. Upon termination due to breach or abandonment, Lessee agrees to remove the roof-mount communications system and any related materials and equipment from the leased premises at its own expense within a time determined to be reasonable by the Parks & Recreation Department. In such case, Lessee shall restore the site as nearly as reasonably possible to its original condition.

ii. In the event of termination in the public interest, the Lessee shall be compensated based upon the initial cost of improvements located on the lease, less depreciation as allocated over the life of the improvements as evidenced by the Lessee's Federal Tax amortization schedule.

l. Notice. All notices required to be provided in writing pursuant to this Lease shall be delivered in writing either by regular mail or delivery in person at the following addresses:

City of Cheyenne
Attn: Jason Sanchez
2101 O'Neil Avenue
Cheyenne, WY 82001

Union Telephone Company
Attn: Eric Woody, CEO
P.O. Box 160
Mountain View, WY 82939

With a copy to:

Union Telephone Company
Attn: Jason Wilcox, General Counsel
P.O. Box 160
Mountain View, WY 82939

m. Taxes. Lessee agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by or in connection with its operations under this Lease.

n. Prior Approval. This Lease shall not be binding upon either party until it has been reduced to writing and approved by all necessary authorities

o. Entirety of the Agreement. This Lease, consisting of eight (8) pages and Attachments A and B, respectively, represents the entire and integrated agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral, including, but not limited to the Lease Agreement Between the City of Cheyenne and Union Telephone Company, Agreement No. 5483, dated November 9, 2009,

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and First Addendum to the Lease Agreement Between the City of Cheyenne and Union Telephone Company dated December 31, 2014.

p. Effective Date. This Lease becomes effective as of the date set forth in paragraph 1 above.

[SIGNATURES ON FOLLOWING PAGE]

IN WITNESS WHEREOF, the parties have executed this Lease Agreement between the City of Cheyenne and Union Telephone Company as of the day and year above first written.

City of Cheyenne:

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk

Union Telephone Company:

By: _____
(Signature)

(Print Name)

(Title)

STATE OF WYOMING)
) ss.
COUNTY OF _____)

The foregoing instrument was acknowledged before me this _____ day of _____, 2025, by _____, the _____ with authority on behalf of Union Telephone Company.

WITNESS my hand and official seal.

(SEAL)

Notary Public

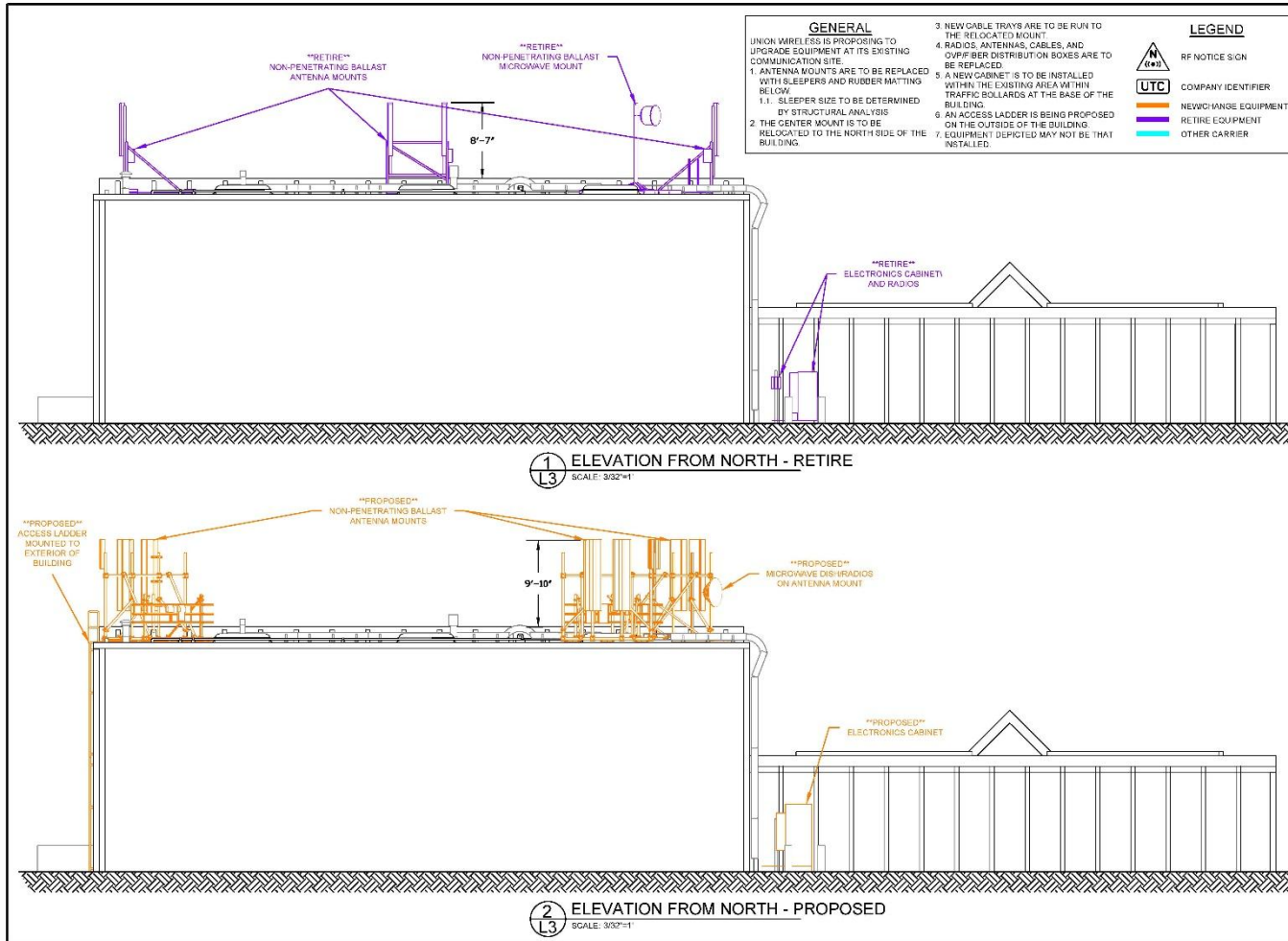
My Commission Expires:

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Attachment A — Lease Agreement Between the City of Cheyenne and Union Telephone Company



ATTACHMENT "A"



850 N. HIGHWAY 414
 PO BOX 160
 MOUNTAIN VIEW, WY 82638

THE INFORMATION CONTAINED IN THIS DOCUMENT IS PROPRIETARY. ANY USE OR ENCLOSURE OTHER THAN THOSE AUTHORIZED BY UNION TELEPHONE COMPANY IS STRICTLY PROHIBITED.

CURRENT REV	DATE
F	4/24/2024

BY: **MATTHEW FISHER**

REVISION: **N/A**

APPROVED FOR LEASING
 24 APRIL 2025

PROJECT NAME:
CHEYENNE DESIGN CENTER

PROJECT ADDRESS:
 4500 DELL RANGE BLVD
 CHEYENNE, LARAMIE COUNTY,
 WYOMING

SHEET TITLE:
LEASING ELEVATIONS

SHEET NUMBER:
L3